

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 COMMITTEE SUBSTITUTE
5 FOR
6 HOUSE BILL NO. 4302

By: Norwood of the House

and

Gillespie of the Senate

8
9 COMMITTEE SUBSTITUTE

10 An Act relating to children; amending 10 O.S. 2021,
11 Section 601.6, as amended by Section 1, Chapter 178,
12 O.S.L. 2025 (10 O.S. Supp. 2025, Section 601.6),
13 which relates to the Office of Juvenile System
14 Oversight; authorizing the release of certain
15 information for certain purposes; and providing an
16 effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 10 O.S. 2021, Section 601.6, as
amended by Section 1, Chapter 178, O.S.L. 2025 (10 O.S. Supp. 2025,
Section 601.6), is amended to read as follows:

Section 601.6. A. For purposes of this section, the term
"children and youth service system" shall have the same meaning as
it is defined in Section 600 of this title.

B. The Office of Juvenile System Oversight shall have the
responsibility of inspecting and investigating misfeasance and

malfeasance within the children and youth service system, as directed by the Oklahoma Commission on Children and Youth, to ascertain compliance with established responsibilities.

C. The Office shall conduct not less than one but not more than two regular, periodic, unannounced inspections of state-operated children's institutions and facilities annually. The Office is further authorized to inspect privately operated children's institutions and facilities that receive state or federal funding, on a periodic basis or as needed.

D. The Office shall investigate complaints filed with the Office regarding the children and youth service system.

E. The Office of Juvenile System Oversight shall have the authority to:

1. Access all facilities within the children and youth service system for the purpose of conducting inspections and investigations;

2. Examine and copy all records and budgets pertaining to the children and youth service system and to review inspection reports of the State Fire Marshal, State Department of Health, and any other agency that accredits such institutions and facilities;

3. Interview the residents of institutions and facilities within the children and youth service system;

4. Subpoena witnesses and hold public hearings;

5. Establish, in accordance with the Dispute Resolution Act, Sections 1801 through 1813 of Title 12 of the Oklahoma Statutes, a

1 voluntary program for foster parents to mediate complaints
2 concerning the rights of foster parents, as provided for in Section
3 1-9-119 of Title 10A of the Oklahoma Statutes, that relate to
4 certain actions, inactions or decisions of the Department of Human
5 Services, the Department of Juvenile Justice, or child-placing
6 agencies that may adversely affect the safety and well-being of
7 children in the custody of the state;

8 6. Receive any complaint alleging that an employee of the
9 Department of Human Services or a child-placing agency has
10 threatened a foster parent with removal of a child from the foster
11 parent, harassed a foster parent, or refused to place a child in a
12 licensed or certified foster home, or disrupted a child placement as
13 retaliation or discrimination towards a foster parent who has:

- 14 a. filed a grievance pursuant to Section 1-9-120 of Title
15 10A of the Oklahoma Statutes,
- 16 b. provided information to any state official or
17 Department employee, or
- 18 c. testified, assisted, or otherwise participated in an
19 investigation, proceeding, or hearing against the
20 Department or child-placing agency.

21 The Office of Juvenile System Oversight shall forward the
22 complaints to the Office of Client Advocacy for investigation
23 pursuant to subsection D of Section 1-9-112 of Title 10A of the
24 Oklahoma Statutes. The Office of Juvenile System Oversight shall

1 work with the Office of Client Advocacy to ensure the complaints are
2 investigated and resolved in accordance with the grievance
3 procedures provided in Section 1-9-120 of Title 10A of the Oklahoma
4 Statutes. The provisions of this paragraph shall not apply to any
5 complaint by a foster parent regarding the result of a criminal,
6 administrative, or civil proceeding for a violation of any law,
7 rule, or contract provision by that foster parent, or the action
8 taken by the Department or a child-placing agency in conformity with
9 the result of any such proceeding;

10 7. Issue reports to the Governor, Speaker of the House of
11 Representatives, President Pro Tempore of the Senate, Chief Justice
12 of the Supreme Court of the State of Oklahoma, any appropriate
13 prosecutorial agency, the director of the agency under
14 consideration, and other persons as necessary and appropriate; and

15 8. Provide recommendations to the Oklahoma Commission on
16 Children and Youth on or before May 1 of each year.

17 F. The Office of Juvenile System Oversight shall not release
18 information that would identify a person who makes a complaint to
19 the Office, unless ~~a~~:

20 1. A court of competent jurisdiction orders release of the
21 information for good cause shown; or

22 2. The disclosure of such information to the appropriate law
23 enforcement agency is needed to protect the safety of others when a
24 complainant communicates a threat against an individual or entity.

SECTION 2. This act shall become effective November 1, 2026.

COMMITTEE REPORT BY: COMMITTEE ON HEALTH AND HUMAN SERVICES
OVERSIGHT, dated 02/26/2026 - DO PASS, As Amended.